

Court No. - 21

Case :- WRIT - C No. - 13982 of 2023

Petitioner :- Udit Narayan

Respondent :- State Of U.P. And 3 Others

Counsel for Petitioner :- Ray Sahab Yadav

Counsel for Respondent :- C.S.C.,Jai Krishna Upadhyay

Hon'ble Manoj Kumar Gupta,J.

Hon'ble Prashant Kumar,J.

Learned counsel for the respondent Electricity Department prays for and is granted one week's time to obtain instructions.

List as fresh on 4.5.2023.

In the meantime, no coercive action shall be taken against the petitioner in pursuance of the impugned recovery proceedings.

(Prashant Kumar, J.) (Manoj Kumar Gupta, J.)

Order Date :- 26.4.2023

SL

Court No. - 21

Case :- WRIT - C No. - 13982 of 2023

Petitioner :- Udit Narayan

Respondent :- State Of U.P. And 3 Others

Counsel for Petitioner :- Ray Sahab Yadav

Counsel for Respondent :- C.S.C.,Jai Krishna Upadhyay

Hon'ble Manoj Kumar Gupta,J.

Hon'ble Rajendra Kumar-IV,J.

Learned counsel for the respondent seeks two days further time to complete his instructions. He shall disclose the date on which notice of provisional assessment was sent to the petitioner; how it was served; the date fixed for hearing; whether the order of final assessment deals with the objections, if any, filed by the petitioner and how copy of the order of final assessment was sent to the petitioner.

List as fresh on 9.5.2023.

In the meantime, the interim order will continue to remain in operation.

(Rajendra Kumar-IV, J.) (Manoj Kumar Gupta, J.)

Order Date :- 5.5.2023

Jaideep/-

Court No. - 21

Case :- WRIT - C No. - 13982 of 2023

Petitioner :- Udit Narayan

Respondent :- State Of U.P. And 3 Others

Counsel for Petitioner :- Ray Sahab Yadav

Counsel for Respondent :- C.S.C.,Jai Krishna Upadhyay

Hon'ble Manoj Kumar Gupta,J.

Hon'ble Prashant Kumar,J.

Counsel for the respondent-electricity department admits that the notice of provisional assessment was not sent to the petitioner by registered post. He seeks time to rectify the defect.

Accordingly, the matter is adjourned.

List as fresh on 16.05.2023.

(Prashant Kumar, J.) (Manoj Kumar Gupta, J.)

Order Date :- 9.5.2023

S.P.

Court No. - 21

Case :- WRIT - C No. - 13982 of 2023

Petitioner :- Udit Narayan

Respondent :- State Of U.P. And 3 Others

Counsel for Petitioner :- Ray Sahab Yadav

Counsel for Respondent :- C.S.C.,Jai Krishna Upadhyay

Hon'ble Manoj Kumar Gupta,J.

Hon'ble Prashant Kumar,J.

1. The petitioner has challenged the recovery citation dated 29.11.2021 issued by respondent no. 4 for recovery of electricity dues in a case of theft of electricity.

2. Sri Jai Krishan Upadhyay, learned counsel appearing on behalf of the respondent-Electricity Department, states that the impugned recovery citation was wrongly issued and that it is being withdrawn. A communication sent in this behalf on 15.5.2023 by respondent no. 4 to respondent no. 2 has been placed before us for perusal.

3. Having regard to the above stand, we hereby quash the recovery citation dated 29.11.2021, leaving it open to respondent no. 4 to proceed afresh strictly in accordance with the procedure prescribed under the U.P. Electricity Supply Code, 2005.

4. Since the petitioner has been put to unnecessary harassment on account of issuance of the illegal recovery citation, we allow the instant petition with a cost of Rs. 10,000/- to be paid to the petitioner by respondent nos. 3 and 4 within two weeks from today. It is left open to respondent nos. 3 to recover the said amount from the erring officer.

(Prashant Kumar, J.) (Manoj Kumar Gupta, J.)

Order Date :- 16.5.2023/Jaideep/-